

NO. 141-370402-25**WEINSTEIN MANAGEMENT CO.,
INC. AND WMCI DALLAS X, LLC,
Plaintiffs and Counter-Defendants,****v.****KATHRYN COPELAND,
Defendant and Counter-Plaintiff.**§
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§**IN THE DISTRICT COURT OF****TARRANT COUNTY, TEXAS****141ST JUDICIAL DISTRICT**

**ORDER GRANTING DEFENDANT / COUNTER-PLAINTIFF'S
MOTION FOR STATUTORILY REQUIRED ACCOMMODATIONS
AND CLARIFICATION OF RIGHTS**

On this day, the Court considered *Defendant/Counter-Plaintiff Kathryn Copeland's Motion for Statutorily Required Accommodations Under the Texas Fair Housing Act and Request for Clarification of Rights* (the "Motion").

After reviewing the Motion, the evidence, and the applicable statutory authority, the Court finds that the requested relief is **procedurally appropriate, narrowly tailored, and necessary to ensure compliance** with the Texas Fair Housing Act ("TFHA"), Tex. Prop. Code § 301.001 et seq., during the pendency of this action.

The Court further finds that:

1. Defendant submitted written accommodation requests beginning June 27, 2025, supported by documented disability-related needs;
2. Plaintiffs did not engage in the TFHA-required interactive process following that request;
3. Environmental conditions that predate the alleged September 11, 2025 incident have displaced Defendant from her residence;
4. Interim clarification of rights will preserve the status quo and protect the parties' positions until trial.

Accordingly, IT IS ORDERED THAT:

I. INTERACTIVE PROCESS (TFHA § 301.021)

Plaintiffs shall **participate in a good-faith interactive process** with Defendant within **three (3) days** of this Order. The purpose of this interactive process is to identify **reasonable temporary housing accommodations**, including but not limited to:

- kitchen access,
- air filtration, and
- avoidance of environmental triggers documented in Defendant's medical records.

The interactive process shall continue until the parties reach an agreed accommodation or until further order of this Court.

II. CLARIFICATION OF STATUTORY DUTIES

Pursuant to Tex. Prop. Code § 301.021 and persuasive federal authority interpreting the Fair Housing Act:

1. Plaintiffs have a continuing duty to consider and provide **reasonable accommodations** necessary to afford Defendant equal opportunity to use and enjoy a dwelling during displacement;
 2. Failure to engage in the interactive process, including delay, constitutes a **constructive denial** under applicable law; and
 3. Nothing in this Order adjudicates final damages or liability, which are reserved for trial.
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III. PRESERVATION OF DEFENDANT'S PERSONAL PROPERTY

Plaintiffs and their agents are hereby **prohibited from disposing of, altering, cleaning, or otherwise disturbing** any personal property belonging to Defendant without further order of this Court.

IV. RETURN TO COURT IF DISPUTES ARISE

Any disputes concerning the adequacy of temporary accommodations shall be submitted to this Court for expedited resolution.

V. RESERVATION OF RIGHTS

All other issues—including damages, sanctions, and dispositive motions—are **expressly reserved** for future rulings.

SIGNED on _____, 2025, at _____ .m.

JUDGE PRESIDING

141st Judicial District Court, Tarrant County, Texas

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